

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MATTHEW ACEVEDO,

Plaintiff,

-against-

CITY OF NEW YORK, JOSEPH CANALE, and JOHN
OR JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.
Purchased:

Plaintiff Designates New York
County as the Proper Venue for Trial

Venue is the county in which the
causes of action arose

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 28, 2023

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

s/Sang Sim

Sang Sim, Esq.

Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

Detective JOSEPH CANALE

Shield No. 6473, Tax No. 941315

PSA 7

737 Melrose Ave

Bronx, New York, 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MATTHEW ACEVEDO,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, JOSEPH CANALE, and JOHN
OR JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **MATTHEW ACEVEDO**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, as and for his complaint against the Defendants, **CITY OF NEW YORK, JOSEPH CANALE**, and **JOHN OR JANE DOE 1-10**, hereby alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of his civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on December 9, 2020, when defendants, acting under color of state law, caused Plaintiff to be unlawfully stopped, questioned, searched, battered and assaulted, arrested and detained in the vicinity of 2025 1st Avenue, County and State of New York. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. This action and associated claims have been filed within the applicable statute of limitations, which is three years for Plaintiff's state and federal claims.

5. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

6. This action and associated claims have been filed within the applicable statute of limitations, which is three years for state and federal claims availing of the tolling availing upon the New York Executive Order issued by former-Governor Andrew Cuomo that tolled all statutes of limitations for the period from March 20, 2020 to November 4, 2020 in response to the COVID-19 pandemic.

PARTIES

7. At all relevant times herein, Plaintiff, Mr. MATTHEW ACEVEDO ("Plaintiff") is a resident of Bronx, New York.

8. At all relevant times herein, Defendant CITY OF NEW YORK ("CITY") is a municipal corporation duly organized and existing under the laws of the State of New York.

9. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant CITY.

10. At all relevant times herein, Defendant CITY, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was

responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, captains, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

11. At all relevant times herein, Defendant CITY was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York and City of New York.

12. At all relevant times herein, Defendant JOSEPH CANALE (“CANALE”) was a police officer, supervisor, official, or policy maker employed by Defendant CITY under Shield No. 10524 and Tax Id No. 960317 and as such, was working in his capacity as an agent, servant or employee of Defendant CITY. Defendant CANALE is being sued in his individual and official capacities.

13. At all relevant times herein, Defendants, JOHN or JANE DOE 1-10, were police officers, detectives, sergeants, policymakers or officials employed by the NYPD, or CITY. At this time, Plaintiff does not know the true names, identities or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants. The names, JOHN or JANE DOE 1-10, are fictitious and are intended as placeholders for the employees, agents or other personnel who caused to Plaintiff to be falsely arrested, assault, battered, maliciously prosecuted, who subjected Plaintiff to excessive force or who aided, abetted, assisted or acted in concert with any other defendants to do the same.

14. At all relevant times herein, Defendants, including CANALE, and JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

15. On December 9, 2020, at approximately 12:00 a.m., in the vicinity of 2025 1st Avenue, County and State of New York, Mr. Acevedo was illegally targeted, because of his race, religion, national origin or other improper characteristic for adverse police action, by Defendants, including JOSEPH CANALE, and JOHN OR JANE DOE 1-10.

16. Defendants, including JOSEPH CANALE and JOHN and JANE DOE 1-10, approached Plaintiff and without warning, grabbed Plaintiff and violently and excessively slammed Plaintiff into the ground, then kicked and punched all over his body while Plaintiff was being held down to the ground.

17. At the time Plaintiff was slammed into the ground, Plaintiff was not physically punching, kicking or otherwise striking anyone, had no weapons on his person, and was not an imminent physical threat to Defendants, or anyone else.

18. After brutally battering Plaintiff, Defendants, including JOSEPH CANALE and JOHN and JANE DOE 1-10, unlawfully searched Plaintiff's belongings and found no contraband of any kind.

19. Defendants, including JOSEPH CANALE and JOHN OR JANE DOE 1-10, had no reason to believe Plaintiff had any contraband on his person or in his possession.

20. Defendants, including JOSEPH CANALE and JOHN OR JANE DOE 1-10, were looking for anything to justify arresting Plaintiff but because they were unable to recover any contraband, left Plaintiff on the road badly beaten after the unlawful, unfruitful, and unwarranted search.

21. Plaintiff asserts that the Defendants, including JOSEPH CANALE, and JOHN OR JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least,

conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

22. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of civil rights.

23. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

24. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

25. Defendants' actions, which occurred without even the semblance of justification, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

26. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective

policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

27. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

28. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, JOHN OR JANE DOE 1-10.

29. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

30. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

31. The aforementioned acts of Defendants, including JOSEPH CANALE and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

32. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, physical injury, protracted disability, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

33. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

34. Plaintiff engaged in speech and activities that were protected by section 8, of Article I to the constitution of the State of New York.

35. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

36. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

37. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or

activities or by chilling his desire to further participate or engage in such protected speech or activities.

38. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by section 8, of Article I to the constitution of the State of New York was violated by Defendants and thus, Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

39. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

40. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

41. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

42. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

43. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

44. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

45. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or

activities, or by chilling his desire to further participate or engage in such protected speech or activities.

46. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

47. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

48. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

49. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

50. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

51. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

52. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

53. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

54. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

56. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

57. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

58. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

59. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

60. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

61. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

62. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

63. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

64. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

65. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

66. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

67. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

68. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

30. The above paragraphs are here incorporated by reference as though fully set forth herein.

31. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

32. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

33. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

34. The above paragraphs are here incorporated by reference as though fully set forth herein.

35. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to

suspected unlawful activity.

36. Accordingly, Defendants violated Plaintiff's rights, pursuant to the NYC Admin Code §§ 8-801 – 8-806.

37. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

38. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

39. The above paragraphs are here incorporated by reference as though fully set forth herein.

40. Plaintiff, as a Hispanic or Latino male, is a member of a racial minority and protected class.

41. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

42. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

43. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

44. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

45. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

46. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

47. Accordingly, Defendants violated Plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

48. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth herein.

51. Plaintiff, as a Hispanic or Latino female, is a member of a racial minority and protected class.

52. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

53. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

54. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

55. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

56. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff specifically the laws governing lawful use of force.

57. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

58. Accordingly, Defendants violated Plaintiff's rights, under the Fourteenth Amendment.

59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth herein.

70. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

71. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

72. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

74. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

75. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

76. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

78. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

79. Defendants CITY owed duties of care to Plaintiff to adequately hire, train, retain or supervise their employees, including the individually named defendants herein.

80. Defendants CITY breached those duties of care.

81. Defendants CITY placed the individually named defendants in positions where they could inflict foreseeable harm.

82. Defendants CITY knew or should have known of that their employees, including the individually named defendants herein, exhibited substantial propensities for committing civil rights violations against members of the public, such as Plaintiff.

83. Defendants CITY failed to take reasonable measures in hiring, training, retaining or supervising their employees, including the individually named defendants herein, that would have prevented the aforesaid injuries to Plaintiff.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

85. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

86. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

87. Defendant CITY's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

88. Defendant CITY, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

89. Defendant CITY's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant CITY and its policymakers toward the rights of individuals, who may come into contact with Defendant CITY's employees.

90. Defendant CITY's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

91. Defendant CITY's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States *vis-à-vis* the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments thereto.

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under

New York City Law

60. The above paragraphs are here incorporated by reference as though fully set forth herein.
61. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.
62. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the N.Y.C. Admin. Code § 10-403.
63. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- p) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
November 28, 2023

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

s/Sang Sim
Sang Sim, Esq.
Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Sang Sim, an attorney admitted to practice in the courts of New York State, state that I am a Partner with the law firm of Sim & DePaola, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 28, 2023

s/Sang Sim

Sang Sim, Esq.